



EAGLE MOUNTAIN CITY COUNCIL MEETING MINUTES

December 5, 2023, 4:00 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

ELECTED OFFICIALS PRESENT: Mayor Tom Westmoreland, Councilmembers Donna Burnham, Colby Curtis, Carolyn Love, and Brett Wright. Councilmember Jared Gray was absent.

CITY STAFF PRESENT: Paul Jerome, City Administrator; Steve Mumford, Deputy City Administrator/Community Development Director; Fionnuala Kofoed, Assistant City Administrator/City Recorder; Cliff Strachan, Director of Legislative Affairs; Evan Berrett, Economic Development Director; Marcus Draper, City Attorney; Kimberly Ruesch, Finance Director; Tyler Maffitt, Communications Manager; Angela Valenzuela, Human Resource Manager; Natalie Winterton, Grants Coordinator/Management Analyst; Terrence Dela Pena, Finance/Management Analyst; Brandon Larsen, Planning Director; Todd Black, Wildlife Biologist/Environmental Planner; Robert Hobbs, Senior Planner; David Stroud, Senior Planner; Steven Lehmitz, Planner; Jody Bates, Chief Deputy Recorder; Chris Trusty, City Engineer; Mack Straw, Public Utilities Manager; Zac Hilton, Streets and Storm Drain Manager/Parks and Recreation Manager; Jeff Weber, Fleet and Facilities/Operations Director; Embret Fossum, Unified Fire Authority Battalion Chief; Eric McDowell, Chief Deputy Sheriff; B.J. Eccles, Sergeant; Melissa Yates, Purchasing Agent; and Jordan Nielson, Water Resource Supervisor.

CITY STAFF PRESENT ELECTRONICALLY: Brad Hickman, Public Works Director; Michele Graves, Library Director; Chas Glenn, Administrative Assistant; and Elizabeth Fewkes, Recording Secretary.

3:30 P.M. BOARD OF CANVASSERS – CITY COUNCIL CHAMBERS

1. CALL TO ORDER

Board Chair Westmoreland called the Board of Canvassers to order at 3:51 p.m.

2. MOTION

2.A. MOTION – Approve the Results for the 2023 General Election

Assistant City Administrator/City Recorder Fionnuala Kofoed presented the 2023 General Election results.

The Utah County Elections Office has verified the ballots from the General Election with the following results:

- 23,319 ballots were mailed and a total of 3,565 were received by mail or drop box for a 15.6% return rate
- 48 in-person ballots counted
- 16 returned electronic ballots
- 2 provisional ballots were processed along with the returns with 100% counted
- 100 ballots were returned but not counted due to missing signatures (13), signatures not matching (30), or invalid postmarks (57)

Total votes cast for each candidate:

Rich Wood	2,068
Craig Whiting	1,328
Angeline Washburn	849
Scott Ferre	877
Jared Gray	1,866
Melissa Clark	2,363

MOTION:

Board Member Curtis moved that the Board of Canvassers:

- 1. Verify the results of the election by ratifying the results of the canvass;***
- 2. Accept the report of the Election Official and certify the election results; and***
- 3. Declare City Council Candidates Melissa Clark, Rich Wood, and Jared R. Gray elected.***

Board Member Wright seconded the motion.

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☒ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a unanimous vote.

3. ADJOURNMENT

MOTION:

***Board Member Wright moved to adjourn the Board of Canvassers at 3:54 p.m.
Board Member Curtis seconded the motion.***

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☒ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a unanimous vote.

The Board of Canvassers adjourned at 3:54 p.m.

ELECTED OFFICIALS PRESENT: Mayor Tom Westmoreland, Councilmembers Donna Burnham, Colby Curtis, Carolyn Love, and Brett Wright.

ELECTED OFFICIALS PRESENT ELECTRONICALLY: Councilmember Jared Gray.

CITY STAFF PRESENT: Paul Jerome, City Administrator; Steve Mumford, Deputy City Administrator/Community Development Director; Fionnuala Kofoed, Assistant City Administrator/City Recorder; Cliff Strachan, Director of Legislative Affairs; Evan Berrett, Economic Development Director; Marcus Draper, City Attorney; Kimberly Ruesch, Finance Director; Tyler Maffitt, Communications

Manager; Angela Valenzuela, Human Resource Manager; Natalie Winterton, Grants Coordinator/Management Analyst; Terrence Dela Pena, Finance/Management Analyst; Brandon Larsen, Planning Director; Todd Black, Wildlife Biologist/Environmental Planner; Robert Hobbs, Senior Planner; David Stroud, Senior Planner; Steven Lehmitz, Planner; Jody Bates, Chief Deputy Recorder; Chris Trusty, City Engineer; Mack Straw, Public Utilities Manager; Zac Hilton, Streets and Storm Drain Manager/Parks and Recreation Manager; Jeff Weber, Fleet and Facilities/Operations Director; Embret Fossum, Unified Fire Authority Battalion Chief; Eric McDowell, Chief Deputy Sheriff; B.J. Eccles; Sergeant; Melissa Yates, Purchasing Agent; and Jordan Nielson, Water Resource Supervisor.

CITY STAFF PRESENT ELECTRONICALLY: Brad Hickman, Public Works Director; Michele Graves, Library Director; Chas Glenn, Administrative Assistant; and Elizabeth Fewkes, Recording Secretary.

4:00 P.M. WORK SESSION

Mayor Westmoreland called the City Council work session to order at 4:04 p.m.

4. CITY ADMINISTRATOR INFORMATION ITEMS

4.A. UPDATE – City Administrator Items

City Administrator Paul Jerome stated that due to the length of the agenda and in consideration of time constraints, he will send the information items to the City Council rather than presenting the list during the meeting. He thanked the Events Staff for facilitating the Christmas Village Event.

4.B. DISCUSSION – Rose Ranch (Formerly Mae Land)

Senior Planner David Stroud presented the item. The applicant contemplates a development containing a variety of single-family lots on Parcel 59:043:0016 consisting of 79.9 acres. The applicant proposes a total of 225 lots – 22 R1 lots, 29 R2 lots, 112 R3 lots, and 62 RC lots with a density of 3.39 units per acre. The major issue impacting the project is the current Fairfield Road bisecting the southeast portion of the property and the City's plan to convert the road into a trail. Initial plans have Fairfield Road converted to open space. However, the plan for the foreseeable future is to retain the road, which prevents the area from being used as open space. The project is required to provide 4.97 acres of improved open space. The applicant is proposing to donate 12.56 acres of unimproved land to the City in exchange for their proposal.

Councilmember Wright stated that although he feels that single-family homes are appropriate for this area, RC is not a zone included in the Neighborhood Residential One future land use designation which only allows R1, R2, and R3. He inquired about transitioning to the units to the north and the property to the west outside the City boundary and requested that future applications, including concept plans, include the lot sizes and uses for surrounding developments to assist the Council in evaluating applications in context and how the proposal relates to other developments.

Applicant representative Austin Smith said that they had been asked to add RC units to provide buffering along major roadways.

Councilmember Gray joined the meeting electronically at 4:20 p.m.

Councilmember Love noted that the City has been working for a more even distribution of lots. The proposal of 112 R3 compared to 29 R2 and 22 R1 is unbalanced. She feels that open space in the southeast section of the development would be unusable for the residents.

Councilmember Burnham recognized that several of the lots are larger than required and could be adjusted to meet other zoning designations. Should the land to the west be incorporated as industrial, RC units would be an appropriate buffer. She concurred with the desire to increase the R1 and R2 units and decrease the number of R3 units.

Discussion considered plans and transitioning requirements between the unincorporated land to the west and the other lot sizes and uses adjacent to the development, buffering, and the entitlements on the School and Institutional Trust Lands Administration (SITLA) property, and the proximity of parks to the development.

5. AGENDA REVIEW

13. RESOLUTIONS

13.A. RESOLUTION – Timpanogos Special Service District Reorganization

Councilmember Burnham said that a concern had been brought to her attention. Draper City Council is amenable to this agreement and giving up a board seat because they only have a small area serviced by the District; however, newly elected officials may feel differently once they take office in January. Later during the meeting, she announced that four Draper City Councilmembers would be returning, and one had been newly elected which should reduce concern about them changing their mind about the agreement.

Mr. Jerome clarified that the Timpanogos Special Service District uses a calendar year for their budget rather than a fiscal year.

13.B. RESOLUTION – Surplus of City Property – Restroom Facility

Remove from the consent agenda.

14. AGREEMENTS

14.A. Amended Agreement – Vanguard Ranches Golf Course, LLC Amendment to Restrictive Easement, Right of Entry, and Right of Reversion Exhibit A – Amended Map

Councilmember Curtis explained that he desires to remove the agreement from the consent agenda to be able to vote on the item independently.

Applicant representative Joe Silverzweig said that Comcast is going to increase the purchase price for the property by \$30,000 to be paid to the City as a park fee-in-lieu. They desire to purchase the property because the main trunk line runs through the area making it more accessible and easier to service without disrupting the community. Redesigning the network to relocate the trunk line would increase the cost and extend the completion date delaying when they can provide services by several months.

Councilmember Burnham said that she appreciates their willingness to pay a fee-in-lieu to the City as the land purchase will benefit Comcast.

14.B. Restroom Purchase Agreement – Cadence Homes Building Corp

Councilmember Wright noted that there is an error in the written and numerical amounts listed in the agreement.

City Attorney Marcus Draper stated that he will correct the error.

14.C. Amendment to the Stadion LLC Development Agreement Related to Landscaping Requirements

Mayor Westmoreland noted that this item has been removed from the agenda.

14.H. Installation of updated Audio System and Acoustic Ceiling Clouds for the City Council Chambers – Performance Audio

Assistant City Administrator/City Recorder Fionnuala Kofoed explained that the Recorder's Office has been working with Performance Audio to address the acoustics and sound issues in the Council Chambers. The plan is to create a compatible ecosystem. The proposal adds dark oak ceiling clouds to reduce noise interference and resolve issues with the integration of multiple systems competing for bandwidth. The location on the ceiling will not impact the aesthetics of the room. Additional soundboards can be added to the walls of the Council Chambers if needed, but it would impact the aesthetics of the room. Performance Audio has designed systems for other cities, has provided excellent service to the City in the past, as well as to other cities she has spoken with, and has repaired issues caused by other contractors at no cost to the City. The project has come in significantly under budget and should be completed by January depending upon installer availability. The new audio system is tried and tested and is in use in several courts. The components of the current system that will not be used can be repurposed or sold as surplus. She is confident that Performance Audio will do everything possible to resolve the sound issues.

Councilmembers expressed the desire for reassurance and a satisfaction guarantee that the agreement will result in the anticipated outcome and discussed the capabilities of the proposed system in relation to the current one.

14.I. AGREEMENT – Approving an Amended and Restated Agreement between Eagle Mountain City and Paul Jerome for City Administrator Services.

Mayor Westmoreland stated that the Human Resources Manager responded to his questions regarding the study and he forwarded the email to the City Council.

Councilmember Wright stated that he needs more information and time to be able to evaluate the data to come to a good decision on behalf of Mr. Jerome and the citizens.

18. 2024 MEETING SCHEDULE

18.A. MOTION – Approval of the 2024 Proposed City Council Meeting Schedule

Councilmember Burnham noted that March 5, 2024, is Caucus night for the Democrat and Republican parties and will impact the availability of several Councilmembers. She suggested rescheduling rather than canceling the meeting to prevent a large agenda.

Ms. Kofoed recommended addressing the problematic dates and calling special meetings as needed.

Mr. Jerome stated that the agenda for the January 2nd meeting could include only items tabled during this meeting and exclude new agenda items.

Discussion ensued regarding which meetings to retain on the schedule, whether to schedule additional meetings at this time, and limiting the January 2nd agenda to tabled and already prepared items.

19. PRELIMINARY PLATS & SITE PLANS

19.A. PRELIMINARY PLAT – Alpine School District Preliminary Plat (Eagle Mountain Middle School Plat)

Senior Planner David Stroud presented the item. With the growth in the Eagle Mountain area, Alpine School District (ASD) is in need of a middle school for the expected rise in the student population. ASD owns 64 acres immediately south of the Arrival development. The proposal is to subdivide this property to locate the school and provide a lot to construct a future seminary building. A future connection to the Arrival development will be added via Harmony Way.

Mayor Westmoreland informed the City Council that an ASD representative stated that they want to be a better partner in planning for development.

City Engineer Chris Trusty explained that the traffic study for this school indicated the need for a traffic light and acceleration and deceleration lanes at the intersection of Belle Street and Corey B Wride Memorial Highway. Staff is working with ASD and the Utah Department of Transportation (UDOT) to integrate infrastructure plans.

Councilmember Wright advocated for working with ASD to provide an additional access.

Discussion ensued regarding the following:

- Previous communication and challenges with determining school locations in Eagle Mountain City;
- State requirements for traffic studies for new schools;
- Traffic patterns and concerns;
- Providing busing for students south of the school to prevent students from crossing Corey B Wride Memorial Highway may result in ASD feeling additional access is not needed;
- Plans to have Old Airport Road improvements completed prior to the school opening fall of 2025;
- Possible connections to Belle Street, Harmony Way, and the seminary building/chapel to reduce left-turn movements and long stacking queues;
- City efforts to secure funding and right-of-way for Old Airport Road and road connections to this site; and
- Complications due to adjacent property in the area not being owned by ASD and entitlements for residential development on adjacent property being impacted by the school and Old Airport Road.

19.B. MASTER SITE PLAN – Firefly NPA 8 A3

Applicant representative David Vitek clarified that the site plan is located within the overall community and will not require privacy fencing along major roadways; however, some homes will front on Pole Canyon Boulevard. Based upon the calculation of four bedrooms per townhome unit, including the optional bedroom in the unfinished basements, the parking requirement for 3 ½ stalls per unit results in 259 required parking stalls, and 341 parking stalls are provided.

19.C. PRELIMINARY PLAT/SITE PLAN – Preliminary Plat/Site Plan of Walmart

This item will be removed from the consent agenda and placed as a regularly scheduled item to allow it to be approved following item 20.A.

20. ORDINANCES/PUBLIC HEARINGS

20.A. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code Section 17.55.080.C, Landscaping in Parking and Drive Lane Areas.

Mr. Stroud presented the item. Landscape islands are required every 12 parking stalls and with a minimum dimension of 5 feet by 20 feet for a single-row island and 5 feet by 40 feet for a double-row island. The Municipal Code also permits a minimum drive aisle dimension of 24 feet with parking required at 9 feet by 18 feet. The parking stall dimension not matching the landscape island dimension creates a minimum aisle width of 28 feet between stalls rather than 24 feet. However, 24 feet can be achieved between islands if they are directly across from one another. The proposed amendment changes the required landscape island dimension from 5 feet by 20 feet to 6 feet by 18 feet. This brings the island to the same depth dimension as a parking stall. With the width change, landscaping per island increases from 100 feet by 200 square feet to 108 feet by 216 square feet.

Walmart has drafted their parking lot plan based upon these updated parking standards thus requiring the approval of this item prior to the preliminary plat and site plan for Walmart.

6. ADJOURN TO A CLOSED EXECUTIVE SESSION

MOTION: *Councilmember Burnham moved to adjourn to a closed session for the purpose of discussing reasonably imminent litigation pursuant to Section 52-4-205(1) of the Utah Code, annotated. Councilmember Wright seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☒ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a unanimous vote.

The meeting was adjourned at 5:50 p.m.

7:00 P.M. POLICY SESSION

ELECTED OFFICIALS PRESENT: Mayor Tom Westmoreland, Councilmembers Donna Burnham, Colby Curtis, Carolyn Love, and Brett Wright. Councilmember Jared Gray was absent.

CITY STAFF PRESENT: Paul Jerome, City Administrator; Steve Mumford, Deputy City Administrator/Community Development Director; Fionnuala Kofoed, Assistant City Administrator/City Recorder; Evan Berrett, Economic Development Director; Marcus Draper, City Attorney; Kimberly Ruesch, Finance Director; Angela Valenzuela, Human Resource Manager; Natalie Winterton, Grants Coordinator/Management Analyst; Terrence Dela Pena, Finance/Management Analyst; Brandon Larsen, Planning Director; Robert Hobbs, Senior Planner; David Stroud, Senior Planner; Steven Lehmitz, Planner; Jody Bates, Chief Deputy Recorder; Chris Trusty, City Engineer; Mack Straw, Public Utilities Manager; Zac Hilton, Streets and Storm Drain Manager/Parks and Recreation Manager; Eric McDowell, Chief Deputy Sheriff; B.J. Eccles, Sergeant; Melissa Yates, Purchasing Agent; and Jordan Nielson, Water Resource Supervisor.

CITY STAFF PRESENT ELECTRONICALLY: Cliff Strachan, Director of Legislative Affairs; Tyler Maffitt, Communications Manager; Brad Hickman, Public Works Director; Elizabeth Fewkes, Recording Secretary; and Embret Fossum, Unified Fire Authority Battalion Chief.

7. CALL TO ORDER

Mayor Westmoreland called the policy session to order at 7:31 p.m.

8. PLEDGE OF ALLEGIANCE

Councilmember Curtis led the Pledge of Allegiance.

9. INFORMATION ITEMS/UPCOMING EVENTS

- Eagle Mountain City welcomes residents to join City representatives on December 6th in honor of National Children's Day. This event will run from 6:00 p.m. until 8:00 p.m. at the Pony Express Memorial Cemetery located at 4648 N Eagle Mountain Boulevard.
- The City would like to remind residents to avoid on-street parking when winter storms are approaching. Keep your vehicles safe and help City crews better maintain roadways when snow is falling.

10. PUBLIC COMMENTS

Mayor Westmoreland opened public comment at 7:34 p.m.

Robert Braiden spoke about increased truck traffic and speeding issues on Silver Creek Way and requested mitigation measures.

Michael Watkins, Donna Deshazer, and Zac Huish advocated for moving the new intersection of Old Airport Road in Sage Valley further west, as well as adding a stop light before the new middle school opens as a proactive safety measure to prevent accidents.

Lynnette Rahm submitted an email regarding concerns with the new middle school's impact on traffic on Belle Street.

City Engineer Chris Trusty stated that the alignment for the intersection on Old Airport Road has been moved further to the west and explained the updated plans. The City has provided the Utah Department of Transportation (UDOT) with a traffic study indicating the need for an intersection between Old Airport Road and Corey B Wride Memorial Highway, a State Highway under UDOT jurisdiction.

Elba Maria Perez requested information regarding the traffic study for Walmart as she is concerned about road widths and speed limits.

Kenneth Masteller spoke against the Walmart preliminary plat and site plan as he feels it is too close to the Walmart in Saratoga Springs and believes it will close once an additional location is built in the City Center.

Mayor Westmoreland closed public comment at 7:53 p.m.

11. CITY COUNCIL/MAYOR'S ITEMS

Councilmember Burnham

Councilmember Burnham congratulated the newly elected Councilmembers Melissa Clark, Rich Wood, and Jared Gray and thanked Carolyn Love and Colby Curtis for their service.

Councilmember Love

Councilmember Love said it has been a pleasure to serve Eagle Mountain and thanked the residents for participating by speaking up for what they believe in and want the City to become. She thanked the residents for their votes and support and was honored to serve with her fellow Councilmembers and the Mayor.

Councilmember Wright

Councilmember Wright expressed his gratitude to Councilmembers Love and Curtis and presented them with gifts. He thanked the meeting participants and was moved by their reciting of the Pledge of Allegiance.

Councilmember Curtis

Councilmember Curtis said he looks forward to seeing the accomplishments of the new City Council. He expressed appreciation to the residents for their trust and his fellow Councilmembers and staff for their grace. He thanked his family for their sacrifices to allow him to serve.

Mayor Westmoreland

Mayor Westmoreland thanked Councilmembers Love and Curtis for their service and dedication.

12. APPOINTMENTS

12.A. Cemetery Advisory Board

1. Jennifer Webb – Three-year term through December 2026
2. Heather Jackson – Three-year through December 2026

MOTION: *Councilmember Curtis moved to approve an appointment of Jennifer Webb to the Cemetery Advisory Board for a three-year term through December 2026. Councilmember Burnham seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☒ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a unanimous vote.

MOTION: *Councilmember Curtis moved to approve an appointment of Heather Jackson to the Cemetery Advisory Board for a three-year term through December 2026. Councilmember Wright seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☒ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a unanimous vote.

12.B. Parks and Recreation Advisory Board

1. Spencer Dalton – Three-year Term through December 2026
2. Kevin Courtright – Three-year Term through December 2026
3. Colby Webb – Three-year Term through December 2026

MOTION: *Councilmember Love moved to approve an appointment of Spencer Dalton to the Parks and Recreation Advisory Board for a three-year term through December 2026. Councilmember Wright seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☒ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a unanimous vote.

MOTION: *Councilmember Love moved to approve an appointment of Kevin Courtright to the Parks and Recreation Advisory Board for a three-year term through December 2026. Councilmember Curtis seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☒ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a unanimous vote.

MOTION: *Councilmember Love moved to approve an appointment of Colby Webb to the Parks and Recreation Advisory Board for a three-year term through December 2026. Councilmember Burnham seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☒ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a unanimous vote.

12.C. Senior Citizens Advisory Council

1. Annette Arndt – Three-year Term through December 2026

MOTION: *Councilmember Wright moved to approve an appointment of Annette Arndt to the Senior Citizens Advisory Council for a three-year term through December 2026. Councilmember Curtis seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☒ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a unanimous vote.

12.D. Youth Council Committee of Advisors

1. Angeline Washburn – One-year Term through June 2024

2. Nathan Washburn – One-year Term through June 2024

MOTION: *Councilmember Burnham moved to approve an appointment of Angeline Washburn to the Youth Council Committee of Advisors for a one-year term through June 2024. Councilmember Curtis seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham
☒ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis
☐ Jared Gray	☐ Jared Gray	☐ Jared Gray	☒ Jared Gray
☒ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love
☒ Brett Wright	☐ Brett Wright	☐ Brett Wright	☐ Brett Wright

The motion passed with a unanimous vote.

MOTION: *Councilmember Burnham moved to approve an appointment of Nathan Washburn to the Youth Council Committee of Advisors for a one-year term through June 2024. Councilmember Curtis seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham
☒ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis
☐ Jared Gray	☐ Jared Gray	☐ Jared Gray	☒ Jared Gray
☒ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love
☒ Brett Wright	☐ Brett Wright	☐ Brett Wright	☐ Brett Wright

The motion passed with a unanimous vote.

Assistant City Administrator/City Recorder Fionnuala Kofoed administered the Oath of Office to the newly appointed advisors and board members.

CONSENT AGENDA

13. RESOLUTIONS

13.A. RESOLUTION – Timpanogos Special Service District Reorganization

13.B. RESOLUTION – Surplus of City Property – Restroom Facility

14. AGREEMENTS

14.A. Amended Agreement – Vanguard Ranches Golf Course, LLC Amendment to Restrictive Easement, Right of Entry, and Right of Reversion Exhibit A – Amended Map

14.B. Restroom Purchase Agreement – Cadence Homes Building Corp

14.C. Amendment to the Stadion LLC Development Agreement Related to Landscaping Requirements

- 14.D. Sewer Easement Agreement – Perry Homes
- 14.E. Sewer Easement Agreement – Patterson Homes Easement Agreement – Patterson Homes
- 14.F. 3D Manhole Scanning & Virtualization Project Second Year – RH Borden & Company, LLC
- 14.G. 3D Manhole Scanning & Virtualization Project Third Year - RH Borden & Company, LLC
- 14.H. Installation of updated Audio System and Acoustic Ceiling Clouds for the City Council Chambers – Performance Audio
- 14.I. AGREEMENT – Approving an Amended and Restated Agreement between Eagle Mountain City and Paul Jerome for City Administrator Services.
- 15. BOND RELEASES
 - 15.A. Harmony Phase A, Plat 8 – Into Warranty
 - 15.B. Eagle Point Phase J Plat 3 – Out of Warranty
 - 15.C. Overland Phase D Plat 2 – Out of Warranty
- 16. CHANGE ORDERS
 - 16.A. Intersection Improvements Project Change Order #1 – Oak Hollow Electric Company
 - 16.B. Smith Ranch Community Park Change Order #1 – S&L Inc.
 - 16.C. Smith Ranch Community Park Change Order #1 – Big T Recreation
 - 16.D. Smith Ranch Community Park Change Order #1 – CXT Restroom
- 17. MINUTES
 - 17.A. November 7, 2023 Minutes – Regular City Council Meeting
- 18. 2024 MEETING SCHEDULE
 - 18.A. MOTION – Approval of the 2024 Proposed City Council Meeting Schedule
- 19. PRELIMINARY PLATS & SITE PLANS
 - 19.A. PRELIMINARY PLAT – Alpine School District Preliminary Plat (Eagle Mountain Middle School Plat)
 - 19.B. MASTER SITE PLAN – Firefly NPA 8 A3

19.C. PRELIMINARY PLAT/SITE PLAN – Preliminary Plat/Site Plan of Walmart

MOTION: *Councilmember Wright moved to approve the consent agenda removing items 13.A., 14.A., 14.I., and 19.C. and placing items 13.A., 14.A., and 19.C. as scheduled items. Councilmember Curtis seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham
☒ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis
☐ Jared Gray	☐ Jared Gray	☐ Jared Gray	☒ Jared Gray
☒ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love
☒ Brett Wright	☐ Brett Wright	☐ Brett Wright	☐ Brett Wright

The motion passed with a unanimous vote.

14.C. Amendment to the Stadion LLC Development Agreement Related to Landscaping Requirements

14.I. AGREEMENT – Approving an Amended and Restated Agreement between Eagle Mountain City and Paul Jerome for City Administrator Services.

The following discussion and motion occurred following item 14.A.

The City Council discussed and clarified their intention to remove items 14.C. and 14.I. and to table the items to a future meeting.

MOTION: *Councilmember Wright moved to table item 14.C. an amendment to the Stadion LLC Development Agreement related to Landscaping Requirements and item 14.I. an Amended and Restated Agreement between Eagle Mountain City and Paul Jerome for City Administrator Services. Councilmember Curtis seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☐ Donna Burnham	☒ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham
☒ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis
☐ Jared Gray	☐ Jared Gray	☐ Jared Gray	☒ Jared Gray
☒ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love
☒ Brett Wright	☐ Brett Wright	☐ Brett Wright	☐ Brett Wright

The motion passed with a vote of 3:1.

SCHEDULED ITEMS

13. RESOLUTIONS

13.A. RESOLUTION – Timpanogos Special Service District Reorganization

Councilmember Wright thanked the Timpanogos Special Service District representatives for the work they have accomplished. He looks forward to approving the reorganization once the Legislature approves the desired changes.

MOTION: *Councilmember Wright moved to table a resolution of Eagle Mountain City, Utah approving the reorganization of the Timpanogos Special Service District and instruct staff to continue to work with District representatives to facilitate the desired changes at the State legislative level and bring the item back to the City Council as soon as the change has been approved by the Legislature and Governor. Councilmember Love seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☒ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a unanimous vote.

14. AGREEMENTS

14.A. Amended Agreement – Vanguard Ranches Golf Course, LLC Amendment to Restrictive Easement, Right of Entry, and Right of Reversion Exhibit A – Amended Map

MOTION: *Councilmember Burnham moved to approve the Vanguard Ranches Golf Course, LLC amended agreement with the addition of \$30,000 from Comcast to be paid to the city as a parks and open space fee-in-lieu. Motion failed for lack of a second.*

MOTION: *Councilmember Curtis moved to deny the Vanguard Ranches Golf Course, LLC amended agreement. Councilmember Wright seconded the motion.*

Councilmember Wright expressed concern about continuing to grant requests to the Ranches Golf Course for changes to the original agreement with the City.

Councilmember Love stated that she desires clarification and finalization about the aspects of the agreements with the golf course before further consideration of this request. As such, she would be willing to table rather than deny the item.

Councilmember Burnham supported tabling rather than denying the item and Councilmember Wright stated that he was open to tabling the item.

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☐ <i>Donna Burnham</i>	☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☐ <i>Colby Curtis</i>	☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☒ <i>Jared Gray</i>
☐ <i>Carolyn Love</i>	☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>

☐ **Brett Wright** ☒ **Brett Wright** ☐ **Brett Wright** ☐ **Brett Wright**

The motion failed with a unanimous vote.

MOTION: *Councilmember Curtis moved to table the Vanguard Ranches Golf Course, LLC amended agreement. Councilmember Wright seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham
☒ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis
☐ Jared Gray	☐ Jared Gray	☐ Jared Gray	☒ Jared Gray
☒ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love
☒ Brett Wright	☐ Brett Wright	☐ Brett Wright	☐ Brett Wright

The motion passed with a unanimous vote.

19.C. PRELIMINARY PLAT/SITE PLAN – Preliminary Plat/Site Plan of Walmart

This item was presented and discussed following item 20.A.

Senior Planner David Stroud presented the item. Walmart was recently granted rezone approval to the Commercial Regional Zone and Open Space 1 zone on Parcel 58:033:0404 at the northwest intersection of Corey B Wride Memorial Highway and Spring Run Parkway. With the rezone, a development agreement with conditions and base elevations of the proposed building was conceptually approved. As per the development agreement, the preliminary plat and site plan approval are to follow the standard procedure contained in Municipal Code. The applicants have made the requested redline corrections. The submission includes a potential future extension. He reviewed the site plan, landscaping, and lighting plans which have been found to be compliant with Municipal Code. The site has two accesses. In the future, a third access will be added to connect to the frontage road that will run along the south side of the property. Staff requested fencing along Spring Run Parkway and the south side of the interior detention basin. The applicant has stated that they will install iron fencing. He recommended conditioning the approval upon the applicant providing an exhibit with the fencing materials and details.

Applicant representative Caleb Beck confirmed that the development agreement grants future access that corresponds with the drive lane south of the fuel station. UDOT stated that they are still in the preliminary stages of securing funding to widen the road and were unable to finalize an agreement for the third access at this time.

MOTION: *Councilmember Wright moved to approve the preliminary plat and site plan for Walmart with the condition to allow staff to review the fencing exhibit on behalf of the City Council. Councilmember Burnham seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham
☐ Colby Curtis	☒ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis
☐ Jared Gray	☐ Jared Gray	☐ Jared Gray	☒ Jared Gray
☒ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love

☒ **Brett Wright** ☐ **Brett Wright** ☐ **Brett Wright** ☐ **Brett Wright**

The motion passed with a vote of 3:1.

20. ORDINANCES/PUBLIC HEARINGS

20.A. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code Section 17.55.080.C, Landscaping in Parking and Drive Lane Areas.

Mr. Stroud explained that the item presented during the work session is intended to alter the dimensions of landscaped parking islands to correspond with parking stall depth requirements to create uniform lane lengths.

Mayor Westmoreland opened the public hearing at 8:24 p.m. As there were no comments, he closed the hearing.

MOTION: ***Councilmember Burnham moved to approve an ordinance of Eagle Mountain City, Utah, amending the Eagle Mountain Municipal Code Section 17.55.080(C), Landscaping in Parking and Drive Lane Areas. Councilmember Curtis seconded the motion.***

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☒ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a unanimous vote.

20.B. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code Title 17, regarding multi-family building height and height of a Religious or Cultural Meeting Hall.

Mr. Stroud presented the item. The current Municipal Code has a maximum height of 35 feet in the MF2 zone regarding multifamily buildings. This amendment proposes a maximum height of 45 feet and a maximum of three stories. A three-story height limit is implied but not specified in the current code and required sloping roofs are not possible at 35 feet. An increase in height will allow for greater architectural options such as steeper roofs, interior ceiling height variability, and rooftop amenities. The height of religious and cultural meeting halls is regulated by the standard of the zone in which they are located. This type of use is typically located in a residential zone, which has a maximum permissible height of 35 feet with an additional 10 feet above the finished structure height allowance for ancillary structures. The proposed change will permit the height of ancillary structures not to exceed 70 feet above grade. A survey of many of the churches in the City found ancillary structure heights of 60 to 70 feet above grade.

Councilmember Wright cited 17.75.052(B), “Non-habitable ancillary structures such as steeples or other similar structures that are generally located on the roof of a religious or cultural meeting hall

may extend to a maximum overall height of 70 feet,” to resolve concerns raised by Councilmember Curtis that developers may try to apply the 70-foot height allowance to residential units.

Councilmember Wright requested that the record reflect that although he has discussed the desire to add language to ensure that rooftop amenities are not allowed to count toward the requirements for ground-level open space and amenity points, and other matters with his fellow Councilmembers, he does so on a one-on-one basis to stay within parameters of the Open and Public Meetings Act.

Mayor Westmoreland opened the public hearing at 8:37 p.m. As there were no comments, he closed the hearing.

MOTION: *Councilmember Wright moved to approve an ordinance of Eagle Mountain City, Utah, amending the Eagle Mountain Municipal Code Title 17, regarding multifamily building height and height of a Religious or Cultural Meeting Hall instructing staff to add language to the document to clarify that rooftop amenities do not qualify for open space or amenity points. Councilmember Love seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☒ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a unanimous vote.

20.C. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Adopting Amendment #2 to the Fiscal Year 2023-2024 Annual Budget.

Finance Director Kimberly Ruesch presented the item. The current amendment as proposed includes rolling forward a few appropriations from Fiscal Year (FY) 2023 as well as new requests for FY 2024 funding for personnel, equipment, professional services, software, and project change orders. The total amendment of \$2,439, 605 includes the following requests:

- FY 2023 Project Appropriations: \$1,617,451
- FY 2024 One-Time Funding Requests: \$534,574
- FY 2024 Operational Increase Requests: \$287,580

Wildlife Biologist/Environmental Planner Todd Black has requested \$11,520 for a Planning Intern temporary position, through the end of this fiscal year with a possibility of renewing the request next year, to assist with devising a plan for managing open space to enable the City to qualify for applicable grant funding. The City has collected money for the Adopt-A-Deer program and the budget reflects those funds being given to the Utah Division of Wildlife Resources as intended. A few items relate to the equipment, vehicle, and half a year's salary for a new Forester position within the Parks and Recreation division to oversee tree planting, maintenance, and management. The rangeland drill seeder would be used to seed open space areas including the wildlife corridor to mitigate tumbleweed and other invasive species.

Within the IT Asset Management Tool request, \$3,000 is related to a new item for tracking and cataloging software for technological equipment inventory; the remaining amount is related to the Open Gov agreement previously approved by the City Council.

Councilmember Wright stated that although he is supportive of a Forester in general, he would like to see more information regarding the goals and implementation of the position. He requested additional information regarding the Hotel Feasibility Study.

Ms. Ruesch explained that \$15,000 of the Economic Department increase is rolling forward the Retail Recruitment fund approved last year and \$84,000 is related to the Hotel Feasibility Study.

Economic Development Director Evan Berrett explained that large chain hotels have expressed interest in locating in Eagle Mountain but will not pursue development until a Hotel Feasibility Study has been completed. The study would encompass the entirety of the City and can be utilized by multiple hotel operators. He hopes that the full budget will not be needed and he has been in conversations with property owners that will benefit from the study to request their assistance with funding. Preliminary analysis and attention from smaller hotel businesses indicate hotels could be viable but they will not move forward without confirmation from an independent, third-party study.

Ms. Ruesch verified that the \$166,985 is a request for additional funding for branding implementation. A large portion would be used towards the City website redesign and the remainder would be allocated to a phased rollout of the new branding. In the Fleet Fund, \$68,000 is earmarked for an equipped Ford F150 for the Forester position. The other \$47,825 is for a vehicle that was approved last year but was not available for purchase until now and \$73,000 of the Smith Ranch Park is related to the change orders approved earlier in the meeting. The remainder is for contract facilities approved last year.

Mayor Westmoreland opened the public hearing at 8:56 p.m. As there were no comments, he closed the hearing.

The City Council requested more information be presented at a future meeting regarding the Forester position, including tree management programs in other cities; and a review of proposed branding implementation.

MOTION: *Councilmember Burnham moved to approve an ordinance of Eagle Mountain City, Utah, adopting Amendment #2 to the Fiscal Year 2023-2024 Annual Budget removing all items related to the City Forester position, including the vehicle and IT equipment for that position, and branding implementation items, to return to the City Council at a meeting in January. Councilmember Wright seconded the motion.*

Those Voting Yes

☒ Donna Burnham
☒ Colby Curtis
☐ Jared Gray
☒ Carolyn Love
☒ Brett Wright

Those Voting No

☐ Donna Burnham
☐ Colby Curtis
☐ Jared Gray
☐ Carolyn Love
☐ Brett Wright

Those Abstaining

☐ Donna Burnham
☐ Colby Curtis
☐ Jared Gray
☐ Carolyn Love
☐ Brett Wright

Those Absent

☐ Donna Burnham
☐ Colby Curtis
☒ Jared Gray
☐ Carolyn Love
☐ Brett Wright

The motion passed with a unanimous vote.

20.D. ORDINANCE/PUBLIC HEARING – An Ordinance Amending the Eagle Mountain City, Utah, Municipal Code, Chapter 7 Parks, Trails, and Special Events; Chapter 16 Subdivisions; and Chapter 17 Zoning.

Grants Coordinator/Management Analyst Natalie Winterton explained that Eagle Mountain City has the opportunity to consider the water supply agreement with Central Utah Water Conservancy District (CUWCD) to purchase 2,000 acre-feet of water. She presented an overview of the item and provided examples of implementation of the following options:

- Option 1: The City can accept CUWCD's recommended landscape standards and sign the contract. This will include accepting the CUWCD's recommended water efficiency standards verbatim which includes a 35% limit for residential turf, and a 20% limit for industrial, commercial, institutional, and multi-family turf (outside of active recreation areas).
- Option 2: The City can alter the percentages of the landscape standards, provided the City can prove increased water savings by doing so. This would include CUWCD's recommended water efficiency standards verbatim except for the percentages of turf allowed. A 0% limit for industrial turf, a 0% limit for commercial, a 50% limit for residential turf, and a 20% limit for institutional and multifamily turf (outside of active recreation areas).
- Option 3: The City can reject the contract with CUWCD and not make the alterations to the landscaping code.

Should the City select Option 2, residents would not be eligible for the CUWCD's current and future rebate programs unless the City were to adopt CUWCD preferred standards in the future.

Mr. Jerome explained that the State sets the parameters for Flip the Strip and other water conservation initiative programs. CUWCD indicated a willingness to work with Eagle Mountain City to create other programs, but details have yet to be determined.

Ms. Winterton explained that the standards only apply to the front landscaping the City requires to be installed by the developer from the front property line to the front line of the house. Residents may still decide whether to install sod on the side yard along the sides of their homes. The City has defined a side yard; however, the CUWCD requirement is based on the landscaping required to be installed by the developer rather than front and side yard designations.

Deputy City Administrator/Community Development Director Steve Mumford clarified that the City requires developers to install the front and side yard landscaping. Staff has interpreted the standards to indicate the area from the front property line to where a fence would be installed on the side of the house but there is not a current standard stipulating the placement of the fence line as it differs from lot to lot.

Discussion ensued regarding locations for fence placement and developer-installed landscaping.

Councilmember Love recommended creating City programs to gauge resident interest and adding more specific definitions and guidelines for developer-installed landscaping.

Ms. Winterton recommended adding more specific standards to the City developer landscaping requirements in the applicable area of Municipal Code at a future meeting rather than including those details in the standards related to the water purchase agreement.

Councilmembers Burnham supported updating the developer landscaping standards to clarify requirements. She had a discussion with the Mayor regarding complaints from Eagle Mountain

residents to Utah Water Quality about the high level of solids in the water. She anticipates that the allowable level of total dissolved solids (TDS) will be lowered. Blending CUWCD water with well water enables the City to reduce the TDS levels.

Mayor Westmoreland said that although the outcome of the Utah Water Quality meeting is uncertain, there could be pressure to lower State standards to be more in line with Federal standards.

Ms. Kofoed stated that the City has an inventory of approximately 15,000-acre feet of well water and less than 5,000-acre feet is in service.

Councilmember Wright noted that the City has 14,300 acre-feet of water already contracted with CUWCD which enables the City to be more prescriptive in the way the water is blended with well water to reduce TDS levels. He assured residents that the well water is safe to use despite being higher in TDS than the CUWCD water.

Mr. Jerome clarified that the City is limited to using CUWCD water during certain times of the year and in the past has run one well when water needs are reduced during times of the year when water is not being used for irrigation.

Public Utilities Manager Mack Straw explained that the City uses CUWCD water during peak summer months. As the contract increases, the City will be permitted to use CUWCD water during non-peak times of the year. The City currently uses around 4,520 acre-feet of CUWCD water in addition to the 5,000-acre feet of well water.

Mayor Westmoreland opened the public hearing at 9:20 p.m. As there were no comments, he closed the hearing.

Mayor Westmoreland commented on the importance of water, being judicious in water management, and the difficulty in forecasting water needs to compensate for droughts and other challenges. He desires to keep economic development strong and water rates low for residents while maintaining high-quality water. He fears that prices to purchase additional water will continue to increase.

MOTION: *Councilmember Love moved to approve an ordinance amending the Eagle Mountain City, Utah, Municipal Code, Chapter 7 Parks, Trails, and Special Events; Chapter 16 Subdivisions; and Chapter 17 Zoning with Option 2 with the 50% residential turf allowance and directing staff to create definitions for side yards and the portion of the yard that the developer is required to fence. Councilmember Burnham seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☐ <i>Colby Curtis</i>	☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☒ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☐ <i>Brett Wright</i>	☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>
☒ <i>Tom Westmoreland</i>	☐ <i>Tom Westmoreland</i>	☐ <i>Tom Westmoreland</i>	☐ <i>Tom Westmoreland</i>

The motion passed with a vote of 3:2, with Mayor Westmoreland casting the tie-breaking vote.

Councilmember Wright said that he believes in water conservation and appreciates the work done by staff on this project. He thinks it is highly unfair for a monopoly that provides water to municipalities to demand that you amend the previous contract to place new regulations in order to purchase additional acre-feet of water.

Councilmember Love stated that the viability of the City in the future depends on commercial development. She proposed setting aside a portion of the remaining water shares for commercial uses. Councilmember Curtis concurred and further advocated for dedicating the full amount of the remaining water to non-residential uses.

- 20.E. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Amending Eagle Mountain Municipal Code Chapter 17.10.030 Definitions, 17.60.110 Required Buffer Widths and Improvements, 17.60.120 General Fencing Provisions, and 17.60.130 Chain Link Fencing.

This item was removed from the agenda.

- 20.F. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Updating the Transportation Master Plan.

City Engineer Chris Trusty explained that the City's Master Transportation Master Plan is being modified regarding the Mid Valley Road alignment through the Hidden Hollow Valley and into Saratoga Springs and upgrading the road classification from an arterial to a parkway. The City has submitted the project for Mountainland Association of Governments (MAG) funding for a study. If selected, the funds would be awarded by the end of April 2024. It scored the highest of the five studies submitted for consideration. The City is also submitting an application for UDOT funding. The City plans to work with SITLA and property owners to secure right-of-way for the project.

Discussion clarified the attributes of a parkway road classification and the importance of the road in the transportation network. The results of the study will determine and finalize the appropriate classification of the Mid Valley Road extension.

Councilmember Burnham clarified that passing the amendment approves the study but does not imply that Mid Valley Road is the City's highest priority as she believes that Corey B Wride Memorial Highway is more significant. She's excited to see the results of the study and feels the new alignment is better.

Discussion considered traffic patterns through the City utilizing the proposed Mid Valley Road route and Corey B Wride Memorial Highway.

Mayor Westmoreland opened the public hearing at 9:42 p.m. As there were no comments, he closed the hearing.

MOTION: *Councilmember Wright moved to adopt an ordinance of Eagle Mountain City, Utah, updating the Transportation Master Plan. Councilmember Curtis seconded the motion.*

Those Voting Yes

☒ ***Donna Burnham***

Those Voting No

☐ ***Donna Burnham***

Those Abstaining

☐ ***Donna Burnham***

Those Absent

☐ ***Donna Burnham***

☒ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis
☐ Jared Gray	☐ Jared Gray	☐ Jared Gray	☒ Jared Gray
☒ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love
☒ Brett Wright	☐ Brett Wright	☐ Brett Wright	☐ Brett Wright

The motion passed with a unanimous vote.

20.G. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Amending Eagle Mountain Municipal Code Chapter 13.75 Eagle Mountain City Storm Water Ordinance.

City Engineer Chris Trusty presented the item. As part of the Municipal Storm Sewer System permit, Eagle Mountain City was recently audited by the State Department of Environmental Quality to ensure the City's compliance with the general permit. As part of this audit, the State asked for portions of Municipal Code to be updated to reflect the actual language contained in the permit. After presenting requested changes to the City Council, State representatives felt the ordinance as submitted still needed some additional modifications to fully comply with the State discharge permit. These changes are reflected in this update. These changes are found in Titles 13 and 15 of Municipal Code. The amendment adds uncontaminated ground water infiltration, residual street wash water, irrigation water, and lawn watering runoff to the allowed uncontaminated discharge sources permitted in 13.75.150(B).

Mayor Westmoreland opened the public hearing at 9:45 p.m. As there were no comments, he closed the hearing.

MOTION: ***Councilmember Love moved to approve an ordinance of Eagle Mountain City, Utah, amending Eagle Mountain Municipal Code Chapter 13.75 Eagle Mountain City Storm Water Ordinance as presented. Councilmember Curtis seconded the motion.***

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham
☒ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis
☐ Jared Gray	☐ Jared Gray	☐ Jared Gray	☒ Jared Gray
☒ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love
☒ Brett Wright	☐ Brett Wright	☐ Brett Wright	☐ Brett Wright

The motion passed with a unanimous vote.

21. BID AWARDS

21.A. BID AWARD – WDG (Web Development Group) Platforms – New City Website

Mr. Jerome explained that as the budget amendment related to this item was tabled, this item is unable to move forward.

MOTION: ***Councilmember Curtis moved to table a bid award to Web Development Group Platforms for a new City Website. Councilmember Wright seconded the motion.***

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☒ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a unanimous vote.

22. ORDINANCES

22.A. ORDINANCE – An Ordinance of Eagle Mountain City, Utah, Amending Eagle Mountain Municipal Code to Enact Chapter 12.35 Public Art.

Ms. Winterton explained that the City Attorney amended the standards to allow the City Council greater discretion in approving art. Otherwise, the proposal is the same as presented to the City Council at a previous meeting.

Councilmember Burnham stated that she feels public art is important and that the proposed standards protect the City. She appreciates the control given to the City Council in their decisions regarding public art.

Councilmember Wright seconded Councilmember Burnham's sentiments. He makes his living in the public and private art sector. Although funding and other aspects need to be finalized, he feels that public art adds value to a community and he approves of the framework that has been created.

Councilmember Curtis said that although he supports art, art in the public sphere generally equates to urbanism which he is against and feels is incongruent with Eagle Mountain City.

MOTION: *Councilmember Burnham moved to approve an ordinance of Eagle Mountain City, Utah, amending Eagle Mountain Municipal Code to enact Chapter 12.35 Public Art. Councilmember Wright seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☐ <i>Colby Curtis</i>	☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☒ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a vote of 3:1.

23. LEGISLATIVE ITEMS

23.A. UPDATE – Legislative Priorities List

Director of Legislative Affairs Cliff Strachan congratulated the newly elected Councilmembers and thanked Councilmembers Curtis and Love for their service. He updated the Council on the status of

the items on the Legislative Priorities List. He will meet with the new and continuing Councilmembers to discuss improved ranking systems for them to apply to the priorities list.

Councilmember Love requested to add a study to determine the amount of water to reserve for potential commercial and other nonresidential development and the creation and funding of a City waterwise landscaping test program to gauge resident interest in water-wise landscaping programs as proposed items on the Legislative Priorities List.

Other Councilmembers supported Councilmember Love's request to add the proposed items to the Legislative Priorities List.

24. CITY COUNCIL/MAYOR'S BUSINESS

This item occurred following item 25.

Councilmember Love

Councilmember Love expressed appreciation for the opportunity to serve and to be trusted with helping make decisions for the City. She thanked staff for their time, hard work, and dedication and Mr. Jerome and Ms. Kofoed for their patience in assisting the City Council and answering their questions. She appreciates the times Councilmembers supported her and the times that differences in opinion resulted in better decisions.

Councilmember Curtis

Councilmember Curtis spoke about the mantle of office that has supported and strengthened him to serve. He expressed gratitude for the personal development he has experienced over the past eight years and reminisced about how the City has grown and changed during that time. He is not proud of the disagreements but he has realized that working through differences builds camaraderie. He appreciates the efforts and support of his fellow Councilmembers.

Mayor Westmoreland

Mayor Westmoreland thanked Councilmembers Love and Curtis for their service and dedication and their and their families' sacrifice.

25. CITY COUNCIL BOARD LIAISON REPORTS

Councilmember Wright

Councilmember Wright said the Military and Veterans Advisory Board has been meeting regularly. The Seniors are concerned with security at their building after an incident and requested to discuss possible increased safety measures with staff.

Councilmember Burnham

Councilmember Burnham noted that the Alpine School District have invited the City Council to attend an event on January 10th at 7:00 p.m. to support the Youth Mayor.

Councilmember Love

None.

Councilmember Curtis

None.

26. COMMUNICATION ITEMS

26.A. Financial Update

27. ADJOURNMENT

MOTION: *Councilmember Love moved to adjourn at 10:19 p.m. Councilmember Curtis seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☒ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a unanimous vote.

The meeting was adjourned at 10:19 p.m.

Approved by the City Council on January 16, 2024.


Fionnuala B. Kofoed, MMC
City Recorder

